

21SMCV01952 21SMCV01952

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-20

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CI%2C08%2F20%2F2026

Source SHA-256: 6ea2fd1921ef87444b1bb2077617c0eb33232578aecc004a1f10f8eb4c017e58

Case Number: 21SMCV01952 Hearing Date: August 20, 2026 Dept: I

The motion is DENIED.

The thrust of this motion is that defendant is alleged to have done poor construction work on plaintiffs' home and walked off the job improperly in early 2020, but because the home was destroyed in the 2025 fire, the fire was an intervening and superseding cause of the loss, and therefore there is no liability. The court agrees that there is no dispute that there was a fire.

Defendant's problem is the legal theory, which is frivolous. The fact that there was a fire almost 5 years after the events alleged in the complaint is not a defense.